

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
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Counterfactual Mandate After Rehearing Denial

Filed: July 8, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court entered its opinion and judgment on June 8, 2026. Asterglen Freight Software, Inc. filed a timely combined petition for panel and en banc rehearing on June 22. The Court denied the petition on July 1 without amending either the opinion or the judgment. The clerk entered an order on July 8 releasing mandate, and no stay or other withholding order remains in effect.

Under Federal Rule of Appellate Procedure 41(b), July 8 is the controlling date. It falls seven calendar days after the rehearing denial and is later than June 29, the date produced by the original rehearing deadline. The timely petition thus changed the operative timing event even though rehearing was denied. The clerk issues this mandate on July 8 in accordance with the release order.

The opinion and judgment identified below constitute the mandate of this Court. Their transmission returns the matter to the district court under the disposition already entered; it does not supply an additional decision on jurisdiction or the contract claim.

Disposition transmitted to the district court

The appeal is DISMISSED, and the matter is REMANDED to the United States District Court for the Northern District of West Virginia. The district court's February 4 Rule 54(b) order did not contain an express determination that there was no just reason for delay. Because Count II and Copper Kestrel's counterclaim remained pending, the Court did not review the January 12 summary-judgment ruling on Count I.

This mandate does not vacate that partial summary judgment, decide whether Section 9.2 barred Asterglen's \$480,000 contract claim, or resolve the remaining interference claim and counterclaim. Those matters retain the status described in the June 8 opinion. The parties may proceed in the district court consistently with that opinion and with any lawful orders entered there after remand.

As stated in the June 8 judgment, each side shall bear its own appellate costs under Federal Rule of Appellate Procedure 39(a)(1). The clerk shall transmit certified copies of this mandate, the opinion, the judgment, the July 1 rehearing order, and the July 8 release order to the district clerk. Electronic notice of issuance shall be given to counsel for all parties. Nothing in this mandate enlarges or narrows the remand beyond the terms of the opinion.

ISSUED BY THE CLERK OF COURT